

Company number 04710715
PRIVATE COMPANY LIMITED BY SHARES
WRITTEN RESOLUTIONS
of
ALPHA FINANCIAL MARKETS CONSULTING LIMITED
(the "Company")

Pursuant to Chapter 2 of Part 13 of the Companies Act 2006 (the "**Act**"), the directors of the Company propose that the following resolutions were passed as special resolutions (the "**Resolutions**").

SPECIAL RESOLUTIONS

THAT the Articles of Association of the Company are amended by deleting all the provisions of the Company's Memorandum of Association which, by virtue of section 28 Companies Act 2006, are to be treated as provisions of the Company's Articles of Association

THAT the Articles of Association annexed hereto be and are hereby approved and adopted as the Articles of Association of the Company in their entirety, in substitution for, and to the exclusion of, the existing Articles of Association

Dated: 24 October 2013

AGREEMENT

Please read the notes at the end of this document before signifying your agreement to the Resolutions

We, the undersigned, being the sole shareholder entitled to vote on the above Resolutions, irrevocably agree to the Resolutions

Name of Shareholder
Alpha Financial Markets
Consulting Group Limited

Signature


Date of Signature
24 October 2013

Copy Dickinsons Chartered Accountants

TUESDAY



A08 29/10/2013 #325
COMPANIES HOUSE

NOTES

1. If you agree to the Resolutions, please indicate your agreement by signing and dating this document where indicated above and returning it to the Company at its registered office
2. If you do not agree to the Resolutions, you do not need to do anything; you will not be deemed to agree if you fail to reply
3. Once you have indicated your agreement to the Resolutions, you may not revoke your agreement
4. If sufficient agreement is not received by the date at the end of the 28-day period beginning on the circulation date, then the Resolutions will lapse and shareholders will not be able to indicate agreement after that date. If you agree to the Resolutions, please ensure that your agreement reaches us before that date
5. If you are signing this document on behalf of a person under a power of attorney or other authority please send a copy of the relevant power of attorney or authority when returning this document

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Company No. 04710715

**Articles of Association of Alpha Financial Markets
Consulting Limited**

Incorporated 25 March 2003

Adopted by written resolution passed on 24 October 2013

CONTENTS

Article	Page
1 PRELIMINARY	2
2 INTERPRETATION.....	2
3 UNANIMOUS DECISIONS OF DIRECTORS	3
4 NUMBER OF DIRECTORS.....	3
5 PARTICIPATION IN DIRECTORS' MEETINGS	3
6 QUORUM FOR DIRECTORS' MEETINGS.. ..	3
7 DIRECTORS' INTERESTS	3
8 APPOINTMENT AND REMOVAL OF DIRECTORS	4
9 TERMINATION OF DIRECTOR'S APPOINTMENT.....	5
10 DIRECTORS' PENSIONS AND GRATUITIES.....	5
11 ALTERNATE DIRECTORS	5
12 ALTERNATE DIRECTORS' EXPENSES.	7
13 SHARES... ..	7
14 TRANSFER OF SHARES	7
15 TRANSMITTEES BOUND BY PRIOR NOTICES.....	8
16 NOTICE OF GENERAL MEETINGS.....	8
17 PROCEEDINGS AT GENERAL MEETINGS	8
18 WRITTEN RESOLUTIONS	8
19 COMPANY COMMUNICATION PROVISIONS	8
20 DIRECTORS' INDEMNITY AND INSURANCE.	9
21 REGISTERED OFFICE.. ..	10
22 LIMITED LIABILITY	10

THE COMPANIES ACT 2006

PRIVATE COMPANY LIMITED BY SHARES

ARTICLES OF ASSOCIATION

OF

ALPHA FINANCIAL MARKETS CONSULTING LIMITED

Adopted by written resolution passed on

2013

1. PRELIMINARY

- 1.1 The regulations contained in Table A of The Companies (Tables A to F) Regulations 1985 as amended by The Companies (Tables A to F) (Amendment) Regulations 2007 (SI 2007/2541) and the Companies (Tables A to F) (Amendment) (No.2) Regulations 2007 (SI 2007/2826) ("Table A") shall not apply to the Company and these Articles alone shall constitute the regulations of the Company.
- 1.2 The model articles of association for private companies limited by shares contained in Schedule 1 to The Companies (Model Articles) Regulations 2008 in force on the date when these Articles become binding on the Company ("**Model Articles**") apply to the Company except in so far as they are excluded or varied by these Articles.

2. INTERPRETATION

- 2.1 In these Articles the following expressions have the following meanings unless inconsistent with the context:

"2006 Act"	the Companies Act 2006 (as amended from time to time)
"these Articles"	these Articles of Association as amended from time to time
"electronic means"	has the meaning given in section 1168 of the 2006 Act
"eligible directors"	has the meaning given in Model Article 8(3)
"Majority Shareholder"	a shareholder or shareholders together holding a majority of the voting rights in the Company (within the meaning of section 1159(1) of and paragraph (2) of Schedule 6 to the 2006 Act)
"Statutes"	the Companies Acts as defined in section 2 of the 2006 Act and every other statute, order, regulation or other subordinate legislation in force from time to time relating to companies and affecting the Company

"United Kingdom"

Great Britain and Northern Ireland

- 2.2 Unless the context otherwise requires, words or expressions contained in these Articles bear the same meaning as in the Statutes but excluding any statutory modification of the same not in force when these Articles become binding on the Company.

- 2.3 References to any statute or statutory provision include, unless the context otherwise requires, a reference to that statute or statutory provision as modified, replaced, re-enacted or consolidated and in force from time to time and any subordinate legislation made under the relevant statute or statutory provision.

3. **UNANIMOUS DECISIONS OF DIRECTORS**

A decision of the directors may take the form of a resolution in writing, where each eligible director has signed one or more copies of it, or to which each eligible director has otherwise indicated agreement in writing. Model Article 8(2) shall not apply to the Company.

4. **NUMBER OF DIRECTORS**

Unless otherwise determined by ordinary resolution, the number of directors (other than alternate directors) shall not be the subject to any maximum but shall not be less than one.

5. **PARTICIPATION IN DIRECTORS' MEETINGS**

Model Article 9(2)(c) shall be amended by the insertion of the word "simultaneously" after the words "how it is proposed that they should" and before the words "communicate with each other during the meeting".

6. **QUORUM FOR DIRECTORS' MEETINGS**

The following shall be added as paragraph (4) to Model Article 11.

"(4) If, as a consequence of section 175(6) of the 2006 Act, a director cannot vote or be counted in the quorum at a directors' meeting then the following shall apply:

- (a) if the eligible directors participating in the meeting do not constitute a quorum then the quorum for the purposes of the meeting shall be reduced by one for each director who cannot vote or be counted in the quorum; and
- (b) if despite sub-paragraph (a) the eligible directors participating in the meeting still do not constitute a quorum or there are no eligible directors then the meeting must be adjourned to enable the shareholders to authorise any situation in which a director has a direct or indirect interest that conflicts, or possibly may conflict, with the interests of the Company."

7 **DIRECTORS' INTERESTS**

- 7.1 Subject to these Articles and the 2006 Act, and provided that he has disclosed to the directors the nature and extent of any interest of his, a director

- 7.1.1 may be a party to or otherwise interested in any transaction or arrangement with the Company or in which the Company is in any way interested;
 - 7.1.2 may hold any other office or employment with the Company (other than the office of auditor);
 - 7.1.3 may be a director or other officer of, or employed by, or be a party to any transaction or arrangement with or otherwise interested in any body corporate in which the Company is in any way interested,
 - 7.1.4 may, or any firm or company of which he is a member or director may, act in a professional capacity for the Company or any body corporate in which the Company is in any way interested (other than as auditor); and/or
 - 7.1.5 shall not be accountable to the Company for any benefit which he receives or profits made as a result of anything permitted by Articles 7.1.1 to 7.1.4 and no such transaction or arrangement shall be liable to be avoided on the ground of any such interest or benefit.
- 7.2 Except for a vote under section 175(4) of the 2006 Act authorising any conflict of interest which a director or any other interested director may have or where the terms of authorisation of such conflict provide that a director may not vote in situations prescribed by the directors when granting such authorisation, a director will be entitled to participate in the decision making process for voting and quorum purposes on any of the matters referred to in Articles 7.1.1 to 7.1.4 and in any of the circumstances set out in Model Articles 14(3) and 14(4)
- 7.3 For the purposes of these Articles references to decision making process includes any directors' meeting or part of a directors meeting.
- 7.4 For the purposes of Article 7.1
- 7.4.1 a general notice given in accordance with the 2006 Act is to be treated as a sufficient declaration of interest;
 - 7.4.2 a director is not required to declare an interest either where he is not aware of such interest or is not aware of the transaction or arrangement in question; and
 - 7.4.3 an interest of a director who appoints an alternate director shall be treated as an interest of the alternate director.
- 7.5 Model Articles 14(1), 14(2) and 14(5) shall not apply to the Company.

8 **APPOINTMENT AND REMOVAL OF DIRECTORS**

In addition to the powers granted by Model Article 17(1), the Majority Shareholder may at any time, and from time to time, appoint any person to be a director, either as an additional director or to fill a vacancy and may remove from office any director however appointed. Any such appointment or removal shall be effected by notice in writing to the Company signed by the Majority Shareholder or, if the Majority Shareholder is a body corporate, signed by one of its directors or duly authorised officers or by its duly authorised attorney.

9. TERMINATION OF DIRECTOR'S APPOINTMENT

In addition to the circumstances set out in Model Article 18 (a) to (f) (inclusive) a person ceases to be a director as soon as that person is removed from office as a director pursuant to Article 8.

10. DIRECTORS' PENSIONS AND GRATUITIES

In addition to the provisions of Model Article 19(3)(b), the directors may exercise all the powers of the Company to give and provide pensions, annuities, gratuities or any other benefits whatsoever to or for present or former directors or employees (or their dependants) of the Company or any subsidiary undertaking (as defined in section 1162 of the 2006 Act) or associated undertaking (as defined in section 479(4) of the 2006 Act) of the Company and the directors shall be entitled to retain any benefits received by them or any of them by reason of the exercise of any such powers.

11. ALTERNATE DIRECTORS

11.1 Appointment and removal of alternates

11.1.1 Any director (the "appointor") may appoint as an alternate any other director, or any other person approved by the directors to

11.1.1.1 exercise that director's powers; and

11.1.1.2 carry out that director's responsibilities,

in relation to participation in directors' meetings and the taking of decisions by the directors in the absence of the alternate's appointor.

11.1.2 Any appointment or removal of an alternate must be effected by notice in writing to the Company signed by the appointor, or in any other manner approved by the directors.

11.1.3 The notice must.

11.1.3.1 identify the proposed alternate; and

11.1.3.2 in the case of a notice of appointment, contain a statement signed by the proposed alternate that the proposed alternate is willing to act as the alternate of the director giving the notice.

11.2 Rights and responsibilities of alternate directors

11.2.1 An alternate director has the same rights, in relation to participation in directors' meetings and the taking of decisions by the directors and in relation to directors' written resolutions, as the alternate's appointor.

11.2.2 An alternate director may act as an alternate director for more than one appointor

11.2.3 Except as these Articles specify otherwise, alternate directors:

11.2.3.1 are deemed for all purposes to be directors;

- 11.2.3.2 are liable for their own acts and omissions;
- 11.2 3.3 are subject to the same restrictions as their appointors, and
- 11.2.3.4 are not deemed to be agents of or for their appointors.

and, each alternate director shall be entitled to receive notice of all meetings of directors and of all meetings of committees of directors of which his appointor is a member.

11 2.4 A person who is an alternate director but not a director:

- 11 2 4.1 may be counted as participating for the purposes of determining whether a quorum is participating (but only if that person's appointor is not participating); and
- 11.2.4.2 may participate in a unanimous decision of the directors (but only if his appointor is an eligible director in relation to that decision, but does not participate).

No alternate may be counted as more than one director for such purposes.

11.2 5 A director who is also an alternate director is entitled, in his absence of his appointor, to a separate vote on behalf of his appointor, in addition to his own vote on any decision of the directors (provided that his appointor is an eligible director in relation to that decision), but shall not count as more than one director for the purposes of determining whether a quorum is present.

11.2 6 An alternate director is not entitled to receive any remuneration from the Company for serving as an alternate director except such part of the alternate's appointor's remuneration as the appointor may direct by notice in writing made to the Company.

11.3 Termination of alternate directorship

11 3.1 An alternate director's appointment as alternate terminates:

- 11.3 1 1 when the alternate's appointor revokes the appointment by notice to the Company in writing specifying when it is to terminate,
- 11.3.1.2 on the occurrence in relation to the alternate of any event which, if it occurred in relation to the alternate's appointor, would result in the termination of the appointor's appointment as a director,
- 11.3.1.3 on the death of the alternate's appointor, or
- 11 3 1.4 when the alternate's appointor's appointment as a director terminates.

12. ALTERNATE DIRECTORS' EXPENSES

Model Article 20 shall be amended by the insertion of the words "(including alternate directors)" before the words "properly incur".

13 SHARES

13.1 In accordance with section 567(1) and (2) of the 2006 Act, sections 561(1) and 562 (1) to (5) (inclusive) of that Act shall not apply to the Company.

13.2 Model Article 21 shall not apply to the Company.

13.3 No shares shall unless otherwise determined by the directors be allotted to any employee, director, prospective employee or director unless such person has entered into a joint election with the Company under section 431 of the Income Tax (Earnings and Pensions) Act 2003.

14. TRANSFER OF SHARES

14.1 Notwithstanding anything contained in these Articles (including, for the avoidance of doubt, provisions incorporated from the Model Articles)

14.1.1 the directors (or director if there is only one) of the Company shall not decline to register any transfer of shares in the Company nor suspend registration of any such shares; and

14.1.2 a holder of shares in the Company shall not comply with any provision of these Articles (including, for the avoidance of doubt, provisions incorporated from the Model Articles) which restricts the transfer of shares or which requires any such shares to be first offered to all or any current shareholders of the Company before any transfer may take place,

where in any such case the transfer is or is to be.

(a) in favour of a bank or institution (or nominee of such bank or institution) to which such shares have been mortgaged, charged or pledged by way of security; or

(b) executed by a receiver or manager appointed by or on behalf of any such bank or institution under any such security; or

(c) to any such bank or institution (or nominee of such bank or institution) pursuant to any such security.

14.2 A certificate by any officer of such bank or institution that the shares were so charged and the transfer was so executed shall be conclusive evidence of such facts.

14.3 Notwithstanding anything contained in these Articles (including, for the avoidance of doubt, provisions incorporated from the Model Articles), the directors (or director if there is only one) of the Company may not exercise its right of lien over shares that have been mortgaged, charged or pledged by way of security to a bank or institution.

14.4 The directors may not refuse to register the transfer of a share made with the prior written approval of the Majority Shareholder.

- 14.5 Model Article 26(5) shall be amended by the addition of the following words: "Subject to the Articles" before the words "the directors may refuse to register".

15. TRANSMITTEES BOUND BY PRIOR NOTICES

Model Article 29 shall be amended by the insertion of the words ", or the name of any person nominated under Model Article 27(2), "after the words "the transmittee's name".

16. NOTICE OF GENERAL MEETINGS

Every notice convening a general meeting shall:

- 16.1 comply with section 325(1) of the 2006 Act as to giving information to shareholders relating to their right to appoint proxies; and
- 16.2 be given in accordance with section 308 of the 2006 Act, that is in hard copy form, electronic form or by means of a website

17. PROCEEDINGS AT GENERAL MEETINGS

- 17.1 If a quorum is not present within half an hour of the time at which a general meeting is due to start or if, during a general meeting, a quorum ceases to be present the chairman of the meeting must adjourn it.
- 17.2 When adjourning the general meeting the chairman of the meeting must specify that the meeting is adjourned either:
- 17.2.1 to the same day, place and time the following week; or
- 17.2.2 to another day, place and time to be decided by the directors.
- 17.3 If a quorum is not present within half an hour of the time at which the adjourned meeting is due to start the shareholder or shareholders present in person or by proxy or by corporate representative and who are entitled to vote shall:
- 17.3.1 constitute a quorum; and
- 17.3.2 have power to decide on all matters which could have been transacted at the meeting which was adjourned.

- 17.4 Model Article 41 shall not apply to the Company

18. WRITTEN RESOLUTIONS

- 18.1 A written resolution, proposed in accordance with section 288(3) of the 2006 Act, will lapse if it is not passed before the end of the period of 28 days beginning with the circulation date.
- 18.2 For the purposes of this Article 18 "circulation date" is the date on which copies of the written resolution are sent or submitted to shareholders or, if copies are sent or submitted on different days, to the first of those days

19. COMPANY COMMUNICATION PROVISIONS

- 19.1 Where:

- 19.1.1 a document or information is sent by post (whether in hard copy or electronic form) to an address in the United Kingdom, and
- 19.1.2 the Company is able to show that it was properly addressed, prepaid and posted,
- it is deemed to have been received by the intended recipient 24 hours after it was posted.
- 19.2 Where:
- 19.2.1 a document or information is sent or supplied by electronic means; and
- 19.2.2 the Company is able to show that it was properly addressed,
- it is deemed to have been received by the intended recipient immediately after it was sent.
- 19.3 Where a document or information is sent or supplied by means of a website, it is deemed to have been received by the intended recipient:
- 19.3.1 when the material was first made available on the website; or
- 19.3.2 if later, when the recipient received (or is deemed to have received) notice of the fact that the material was available on the website.
- 19.4 Pursuant to section 1147(6) of the 2006 Act, subsections (2) (3) and (4) of that section shall be deemed modified by Articles 19.1, 19.2 and 19.3.
- 19.5 Subject to any requirements of the 2006 Act, documents and notices may be sent to the Company in electronic form to the address specified by the Company for that purpose and such documents or notices sent to the Company are sufficiently authenticated if the identity of the sender is confirmed in the way the Company has specified
- 20. DIRECTORS' INDEMNITY AND INSURANCE**
- 20.1 Subject to, and so far as may be permitted by, the 2006 Act and without prejudice to any indemnity to which the person concerned may be otherwise entitled, the Company may indemnify every director, former director, alternate director, secretary or other officer of the Company or of any associated company (as defined in section 256 of the 2006 Act) against any liabilities incurred by him in the execution and discharge of his duties or the exercise of his powers or otherwise in relation to or in connection with his duties, powers or office, including any liability which may attach to him in respect of any negligence, default, breach of duty or breach of trust in relation to anything done or omitted to be done or alleged to have been done or omitted to be done by him as a director, former director, alternate director, secretary or other officer of the Company or of any such associated company and against any such liability incurred by him in connection with the Company's activities as trustee of an occupational pension scheme as defined in section 235(6) of the 2006 Act.
- 20.2 Subject to the 2006 Act the directors may purchase and maintain at the cost of the Company insurance cover for or for the benefit of every director, former director, alternate director, secretary or other officer of the Company or of any associated company (as defined in section 256 of the 2006 Act) against any

liability which may attach to him in respect of any negligence, default, breach of duty or breach of trust by him in relation to the Company (or such associated company), including anything done or omitted to be done or alleged to have been done or omitted to be done by him as a director, former director, alternate director, secretary or other officer of the Company or associated company.

- 20.3 Subject to, and so far as may be permitted by, the 2006 Act, the Company shall be entitled to fund the expenditure of every director, former director, alternate director or other officer of the Company incurred or to be incurred:

20.3.1 in defending any criminal or civil proceedings, or

20.3.2 in connection with any application under sections 661(3), 661(4) or section 1157 of the 2006 Act.

21. REGISTERED OFFICE

The Company's registered office is to be situated in England and Wales.

22. LIMITED LIABILITY

The liability of the members is limited.

Name, address and description of Subscriber

Alpha Financial Markets Consulting Group Limited
60 Gresham Street
London
EC2V 7BB

Dated.